

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

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KEVIN DUNCAN,

Plaintiff,

-against-

POLICE OFFICER WILLIAM SCHUMACHER, Shield  
No. 04618 and SERGEANT ROBERT AGATE, Shield No.  
3869

Defendants.

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**SUMMONS**

Index No.:

The Basis of Venue is:  
Location of Incident

Plaintiff designates Kings  
County as the place of trial.

**To the above named Defendants:**

**You are hereby summoned** to answer the verified complaint in this action, and to serve a copy of your answer, or, if the verified complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York  
February 4, 2017

Yours, etc.

\_\_\_\_\_  
/s/  
JACOBS & HAZAN, LLP.  
STUART E. JACOBS, ESQ.  
Attorney for Plaintiff  
30 Vesey Street, 4<sup>th</sup> Floor  
New York, New York 10007  
(212) 577-2690

TO: Police Officer William Schumacher, Shield No. 04618, 75th Precinct, 1000 Sutter  
Avenue, Brooklyn, New York 11208  
Sergeant Robert Agate, Shield No. 3869, 75<sup>th</sup> Precinct, 1000 Sutter Avenue, Brooklyn,  
New York 11208

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Defendants.

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**INDEX NO.:**

VERIFIED COMPLAINT

**JURY TRIAL DEMANDED**

Plaintiff, KEVIN DUNCAN, by his attorneys, Jacobs & Hazan, LLP, as and for his  
Verified Complaint herein, alleges upon information and belief as follows:

**PRELIMINARY STATEMENT**

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, and of rights secured by the Fourth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On February 5, 2014, at approximately 7:00 p.m., plaintiff Kevin Duncan was subjected to an unlawful stop, frisk, search, detention, false imprisonment, and false imprisonment while lawfully present in the vicinity of Pennsylvania Avenue and Livonia Avenue, Brooklyn, New York. Additionally, the defendant police officers subjected plaintiff to excessive force when they, amongst other things, tripped plaintiff without legal justification, causing plaintiff to smash his face when he fell to the ground. The officers also forcefully placed a foot on plaintiff's back, causing pain and discomfort to plaintiff, while they unlawfully handcuffed him and falsely arrested him. Plaintiff was deprived of his constitutional rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined plaintiff and caused the unjustifiable arrest of plaintiff in violation of the Fourth and Fourteenth Amendments to the United States Constitution and in violation of New York State Law.

**PARTIES**

2. Plaintiff Kevin Duncan is a resident of Brooklyn, New York.

3. Police Officer William Schumacher, Shield No. 04618, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. On the date of the subject incident, Police Officer William Schumacher, Shield No. 04618, was assigned to the 75th Precinct.

5. Police Officer William Schumacher, Shield No. 04618, is being sued in his individual and official capacities.

6. Sergeant Robert Agate, Shield No. 3869 is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. On the date of the subject incident, Sergeant Robert Agate, Shield No. 3869 was assigned to the 75th Precinct.

8. Sergeant Robert Agate, Shield No. 3869 is being sued in his individual and official capacities.

9. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

10. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

11. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

12. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

13. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

### **STATEMENT OF FACTS**

14. On February 5, 2014, plaintiff was lawfully walking on a public sidewalk near his home in the vicinity of Pennsylvania Avenue and Livonia Avenue, Brooklyn, New York, when a police vehicle pulled alongside plaintiff, stopped, and the individually named defendant officers exited their vehicle, approached plaintiff and ordered him to stop walking.

15. Plaintiff was unlawfully seized and not free to leave the location where he was seized, beginning at the moment the defendant officers unlawfully ordered him to stop without legal justification.

16. Plaintiff complied with the officers' unlawful order, stopped walking, and asked the police officers why he was being stopped, but the officers refused to provide plaintiff with a basis for the stop.

17. At no time prior to being stopped by the officers did plaintiff commit a crime or behave in a manner that gave the police officers a reasonable and objective basis to believe he had committed or was committing a crime.

18. Nevertheless, the defendant police officers stopped, questioned, and frisked plaintiff without reasonable suspicion, probable cause, or any legal justification.

19. The police officers then unlawfully frisked plaintiff without reasonable suspicion and unlawfully searched inside of plaintiff's pockets and clothing with probable cause.

20. At no time relevant herein did the defendant police officers recover any illegal weapons, drugs, or contraband from plaintiff's person or that were in his possession, custody or control.

21. Thereafter, without any legal justification and for no apparent reason whatsoever, one of the defendant police officers placed his foot in front of plaintiff, causing plaintiff to trip over the officer's foot and fall face-first into a snow bank.

22. Then, the defendant police officers forcibly secured plaintiff on the ground, face down on his stomach and one officer forcefully slammed his boot into plaintiff's back, causing severe pain and discomfort to plaintiff.

23. The defendant police officers then unlawfully handcuffed plaintiff, forcibly lifted him off the ground, placed him in the back seat of the police vehicle, and transported him to the 75th precinct.

24. At the 75th precinct, plaintiff was fingerprinted, photographed, and unlawfully detained in a holding cell.

25. Thereafter, without any reasonable suspicion, probable cause or legal justification, the defendant police officers searched plaintiff for a second time.

26. The officers did not recover any illegal drugs, weapons, or contraband from plaintiff's person, or his possession, custody or control, as a result of the second unlawful search.

27. Plaintiff was detained at the 75th precinct until the early morning hours of February 6, 2014, after which he was transported to Kings County Central Booking and detained in a filthy holding cell.

28. After being detained for approximately 23 hours, on or about February 6, 2014 at 6:00 p.m., plaintiff was arraigned in Kings County Criminal Court, charged with crimes he did not commit and he was released from custody.

29. All charges against plaintiff were dismissed on or about August 5, 2014.

30. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable stop, question, frisk, search, seizure, false arrest, and excessive force used against plaintiff.

31. The unlawful stop, question, frisk, search, false arrest, false imprisonment, unlawful seizure, and excessive force against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

### **FIRST CAUSE OF ACTION**

#### **Violation of Plaintiff's Fourth Amendment, Fifth Amendment, and Fourteenth Amendment Rights**

32. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 31 with the same force and effect as if more fully set forth at length herein.

33. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked, seized, unlawfully searched, falsely arrested, falsely imprisoned, subjected to denial of his due process rights and denied the right to a fair trial without probable cause in violation of plaintiff's right to be free of an unreasonable seizure and denial of due process under the Fourth and Fifth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

## **SECOND CAUSE OF ACTION**

### **False Arrest and False Imprisonment**

34. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 33 with the same force and effect as if more fully set forth at length herein.

35. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

36. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

37. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

38. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

39. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

## **THIRD CAUSE OF ACTION**

### **Unlawful Stop, Question, and Frisk**

40. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 39 with the same force and effect as if more fully set forth at length herein.

41. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

42. The conduct of defendants in stopping, frisking, and searching, plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

43. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution

44. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

45. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

46. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

### **FOURTH CAUSE OF ACTION**

#### **Unlawful Search**

47. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 46 with the same force and effect as if more fully set forth at length herein.

48. The illegal approach, pursuit, stop and search inside plaintiff's, pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

49. Defendants lacked probable cause to search plaintiff.

50. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

51. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

52. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

53. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

### **FIFTH CAUSE OF ACTION**

#### **Denial of Right to Fair Trial**

54. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 53 with the same force and effect as if fully set forth herein.

55. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

56. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

57. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

58. In withholding/creating false evidence against plaintiff Kevin Duncan and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

59. As a result of the foregoing, plaintiff Kevin Duncan, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

60. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

61. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

## **SIXTH CAUSE OF ACTION**

### **Violation of Plaintiff's Fourth And Fourteenth Amendment**

#### **Rights**

62. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 61 with the same force and effect as if more fully set forth at length herein.

63. The use of excessive force by defendants by tripping plaintiff without his consent, causing him to fall face-first onto the ground and then forcefully securing him on his stomach and placing a foot on his back was an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.



64. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for his conduct.

65. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

### **SEVENTH CAUSE OF ACTION**

#### **Failure to Intervene**

66. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 65 with the same force and effect as if more fully set forth at length herein.

67. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

68. Defendants failed to intervene to prevent the unlawful conduct described herein.

69. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

70. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

71. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

#### **JURY DEMAND**

72. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

**PRAYER FOR RELIEF**

**WHEREFORE**, plaintiff Kevin Duncan demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York  
February 4, 2017

By: /s/  
STUART E. JACOBS  
DAVID M. HAZAN  
JACOBS & HAZAN, LLP  
Attorneys for Plaintiff  
30 Vesey Street, 4<sup>th</sup> Floor  
New York, NY 10007  
(212) 577-2690

TO: Police Officer William Schumacher, Shield No. 04618, 75th Precinct, 1000 Sutter Avenue, Brooklyn, New York 11208  
Sergeant Robert Agate, Shield No. 3869, 75<sup>th</sup> Precinct, 1000 Sutter Avenue, Brooklyn, New York 11208

**ATTORNEY'S VERIFICATION**

**STUART E. JACOBS**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York  
February 4, 2017

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/s/  
STUART E. JACOBS, ESQ.